

subd. A.) The California Supreme Court has held that those duties do not govern tort liability between skiers. (*Cheong, supra*, 16 Cal.4th at p. 1069.) The code itself provides that skiers assume and accept the inherent risks of skiing, which it defines to include collision with other skiers and a skier's failure to ski within his own ability. (Placer County Code, §§ 9.28.020, 9.28.030.) The defendant in *Cheong* also violated the Placer Code by skiing faster than was safe and losing control, yet the Court held the code created no liability between the skiers. If the Placer County Code does not alter the primary assumption of risk analysis, the Northstar Code, a private resort policy, cannot either. (See also, *Avila, supra*, 38 Cal.4th at 165 [violation of a rule of the game does not itself give rise to tort liability between coparticipants].)

Campbell v. Derylo (1999) 75 Cal.App.4th 823, cited as support for using code violations to show an inherent risk has been increased, does not persuade the Court that this motion should be denied. The *Campbell* court limited its holding to the defendant's failure to use a snowboard retention strap, a specific equipment requirement with no parallel here, and treated the remaining alleged misconduct as ordinary negligence barred by primary assumption of risk. *Campbell* does not support that code violations generally transform otherwise ordinary skiing into recklessness.

Disposition

Based on the foregoing, summary judgment is **granted**.

As to the first cause of action, the undisputed facts establish that Romanowski's injuries arose from risks inherent in recreational skiing and that Eliahu's conduct was not so reckless as to fall outside the range of ordinary activity involved in the sport. Primary assumption of risk bars therefore bars her claim against Aaron Eliahu.

As to the second cause of action for negligent supervision against Avi and Patricia Eliahu, the moving papers do not address it separately, and neither party argues it survives independently of the first. A negligent supervision claim requires an underlying tortious act by the person supervised. Because Aaron owed no duty to Romanowski, there is no tort for his parents to have failed to prevent. The second cause of action is therefore disposed of on the same grounds.

10. 9:00 AM CASE NUMBER: C24-03522
CASE NAME: KAMURE KIZART VS. PUBLIC HEALTH FOUNDATION ENTERPRISES, INC.
***HEARING ON MOTION IN RE: COURT APPROVAL OF PAGA SETTLEMENT**
FILED BY: KIZART, KAMURE

TENTATIVE RULING:

Summary

Plaintiff Kamure Kizart's Motion for Approval of the PAGA Settlement Agreement is **granted** as set forth herein. No appearance is required at the June 17, 2026 hearing.

Background

Plaintiff Kamure Kizart ("Plaintiff") and Defendant Public Health Foundation Enterprises, Inc. ("Defendant") have reached a settlement under the Labor Code Private Attorneys General Act of 2004 (PAGA). The total settlement amount is \$1,000,000. The settlement covers approximately 2,600

Aggrieved Employees, defined as all non-exempt, hourly-paid employees employed by Defendant in California from October 21, 2023 through November 19, 2025.

Plaintiff worked as a Shelter Specialist at Defendant's Brookside Shelter location in Richmond, California from approximately July 2023 to April 2024. The lawsuit, filed on December 26, 2024, alleges violations of multiple California Labor Code provisions, including unpaid overtime and minimum wages, failure to provide meal and rest periods, non-compliant wage statements, failure to maintain accurate payroll records, failure to pay vested vacation wages, untimely payment of wages during employment and upon termination, and failure to reimburse business expenses. The settlement was negotiated through mediation with Hon. Howard R. Broadman (Ret.) on November 19, 2025, following production of Defendant's labor policies and employee time and payroll records.

The settlement creates a PAGA Penalties Fund of approximately \$631,667. Of this amount, sixty-five percent (approximately \$410,583.55) will be paid to the Labor and Workforce Development Agency (LWDA), and thirty-five percent (approximately \$221,083.45) will be distributed to Aggrieved Employees. The settlement is non-reversionary, meaning all funds will be distributed.

In addition to the PAGA Penalties Fund, the settlement includes a \$10,000 Service Award to Plaintiff for her service on behalf of the State and Aggrieved Employees, as well as a general release of claims arising from her employment. Plaintiff's counsel requests \$333,333 in attorneys' fees and \$10,000 in litigation costs. Settlement administration costs of approximately \$15,000 will be paid to ILYM Group, Inc.

Payments to Aggrieved Employees will be calculated on a pro-rata basis using the number of pay periods worked by each employee during the settlement period. Employees who worked longer durations will receive proportionally larger payments than those who worked for shorter periods. The Parties contend that the settlement represents a fair compromise of Plaintiff's claims in view of the risks of continued litigation and contested issues of law and fact and accomplishes PAGA's objectives by imposing sufficient civil penalties to punish and deter future violations while ensuring the penalties are not unjust or oppressive.

Analyses

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn.*

Inter-Ins. Bureau v. Superior Court (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs and the requested representative payment of \$5,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The Court finds that this settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. The Motion is **granted**. No appearance is required at the hearing on June 17, 2026.
2. Plaintiff’s Counsel is directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
3. Plaintiffs’ counsel is to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b). Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney’s fees are to be withheld by the administrator until released by the Court after review of the compliance statement. The Court may issue a release through an unreported minute order without hearing on the compliance statement.